

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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TROY GRANT and ANTHONY PAGAN,

Plaintiffs,

-against-

CITY OF NEW YORK, JOHN AVELLINO, EDIN
BACOVIC, ANDY ROLLINS and JOHN or JANE
DOE 1-10,

Defendants.

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SUMMONS

Index No.

Purchased:

Plaintiffs select Bronx
County as the place of trial

The basis of venue is where the
injuries occurred

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
January 6, 2021

SIM & DEPAOLA, LLP

/s/ Samuel C. DePaola

By: Samuel C. DePaola, Esq.

Attorneys for Plaintiffs

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TO: **CORPORATION COUNSEL OF THE CITY OF NEW YORK**
100 Church Street
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JOHN AVELLINO (NYPD Police Officer, Tax Reg. No. 958273)
Via 48th NYPD Precinct
450 Cross Bronx Expressway
The Bronx, NY 10457

EDIN BACOVIC (NYPD Police Officer, Tax Reg, No. 960189)
Via 48th NYPD Precinct
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The Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
TROY GRANT and ANTHONY PAGAN,

Plaintiffs,

VERIFIED COMPLAINT

-against-

Index No.

CITY OF NEW YORK, JOHN AVELLINO, EDIN
BACOVIC, ANDY ROLLINS and JOHN or JANE
DOE 1-10,

Defendants.

-----X

Plaintiffs, **TROY GRANT** and **ANTHONY PAGAN**, by and through the undersigned attorneys, **SIM & DEPAOLA, LLP**, for their complaint against the Defendants, **CITY OF NEW YORK, JOHN AVELLINO, EDIN BACOVIC, ANDY ROLLINS** and **JOHN** or **JANE DOE 1-10**, allege and state as follows:

1. This is a civil rights action, in which plaintiffs seek relief, vis-à-vis 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988, the laws of the State of New York, in addition to the self-executing clauses or implied private causes of action within the New York State Constitution, for the violations of their civil rights, as guaranteed and protected by the First, Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, as well as the Laws and Constitution of the State of New York.

2. The following claims arise from a May 9, 2017 incident, in which Defendants, acting under color of state law, unlawfully stopped, questioned, searched, assaulted, arrested and detained plaintiffs within Bronx County, City and State of New York. As a result, plaintiffs were deprived of their liberties and suffered various physical, emotional and psychological injuries. Plaintiffs were wrongfully detained over the course of two (2) days. Thereafter, Plaintiffs were maliciously

prosecuted and denied their rights to due process and fair trial, until the false charges against them were unconditionally dismissed and sealed resulting in the termination of the criminal proceedings in favor of plaintiffs.

3. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

4. Plaintiffs have complied with the N.Y. General Municipal Law by timely serving a notice of claim upon the City of New York within ninety-days from the date their respective claims arose.

5. At least thirty (30) days have elapsed since the service of said notice, and adjustment or payment thereof has been neglected or refused.

6. Plaintiffs have each complied with the municipal defendant's demand for an examination, pursuant to GML § 50-h, no demand was made or said demand was untimely.

7. Plaintiffs seek monetary damages (compensatory and punitive) against defendants, an award of costs and reasonable attorneys' fees, and such other and further relief as this Court may deem just and proper.

PARTIES

8. Plaintiffs, TROY GRANT ("Mr. Grant") and ANTHONY PAGAN ("Mr. Pagan"), are African American males, who presently reside in the County of Bronx, City and State of New York.

9. Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.

10. At all times relevant hereto, defendant City, acting through the New York City Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and

conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants and other supervisory officers or officials, as well as the individually named NYPD defendants herein.

11. In addition, at all times here relevant, defendant, City, was responsible for enforcing the rules or regulations of the NYPD, and for ensuring that the NYPD personnel obey the laws and constitutions of the United States and the State of New York.

12. Defendants, JOHN AVELLINO (“AVELLINO”), EDIN BACOVIC (“BACOVIC”), and ANDY ROLLINS (“ROLLINS”), were, at all times here relevant, police officers, detectives, sergeants, lieutenants or other supervisory officers, employed by the NYPD and, as such, were acting in the capacity of agents, servants and employees of defendant City. Defendants were, at the times relevant herein, police officers, detectives, sergeants, lieutenants or other supervisory officers, assigned to the 48th Precinct of the NYPD. Defendants are being sued in their individual and official capacities.

13. At all relevant times herein, defendants JOHN or JANE DOE 1-10 were acting as agents, servants and employees of the City of New York, or the NYPD. Defendants JOHN or JANE DOE 1-10 are being sued in their individual and official capacities.

14. At all relevant times herein, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City or State of New York.

15. Within ninety-days of the accrual dates for the claims herein, Plaintiffs served notice of claims, upon the City of New York, pursuant to the applicable sections within the New York General Municipal Law (GML).

16. Over 30 days have elapsed since the filing of this notice, and this matter has not been settled or otherwise disposed of.

17. Plaintiffs have complied with municipal Defendant's request for an oral examination, pursuant to GML § 50-h or no such demand was conveyed within the statutorily prescribed time period.

18. Plaintiffs seek monetary damages (compensatory and punitive) against Defendants, an award of costs and reasonable attorneys' fees, and such other and further relief as this Court may deem just and proper.

FACTUAL CHARGES

19. On, or about, May 9, 2017, at approximately 11:00 p.m., in the vicinity of the Cross Bronx Expressway and Third Avenue, within the County of Bronx, City and State of New York, plaintiffs were unlawfully stopped, questioned, searched, seized and arrested by defendants, including AVELLINO, BACOVIC and ROLLINS.

20. Defendants, including AVELLINO, BACOVIC and ROLLINS, approached plaintiffs with their outstretched arms, while ordering them place their hands above their heads.

23. Defendants, including AVELLINO, BACOVIC and ROLLINS, proceeded to unlawfully stop and question plaintiffs, regarding illegal activity, despite possessing no valid reason to inquire, as no criminal activity was present or even reasonably suspected.

21. Defendants, including AVELLINO, BACOVIC and ROLLINS, never observed any of the plaintiffs to be engaged in unlawful or suspicious activity, as plaintiffs were well within their rights to peaceably gather in mourning of friend who had recently passed and to question and voice their displeasure with the defendants' behavior, particularly defendants' use of clearly excessive force

and exertion of exceedingly poor and discourteous communicative techniques with law abiding members of the community.

22. Defendants, including AVELLINO, BACOVIC and ROLLINS, proceeded to unlawfully search and seize the persons and property of plaintiffs without their consent, a judicially authorized warrant or any other legal authority to do so, as there no were no indicia of criminal activity present.

23. Defendants, including AVELLINO, BACOVIC and ROLLINS, proceeded to grab plaintiffs, physically restrain them and violently contort their arms behind their backs to apply metal handcuffs, which affixed in an excessively tight fashion, causing plaintiffs to each sustain substantial physical pain, bruising and discomfort to their arms, wrists and hands.

24. Defendants, including AVELLINO, BACOVIC and ROLLINS, refused to loosen plaintiffs' handcuffs, despite multiple pleas from each plaintiff.

25. Defendants, including AVELLINO, BACOVIC and ROLLINS, struck each plaintiff with their arms, hands and various hard objects.

26. Plaintiffs were then removed against their will to the 48th precinct where they were each subjected arrest processing by or at the direction of defendants, including AVELLINO, BACOVIC and ROLLINS.

27. Defendants, including AVELLINO, BACOVIC and ROLLINS, personally or indirectly subjected plaintiffs to strip-searches with attendant cavity inspections inside of the 48th precinct, despite the absence of any indicia that plaintiffs had secreted contraband within their person or clothing.

28. Defendants, including AVELLINO, BACOVIC and ROLLINS, fabricated false accounts and allegations against plaintiffs, including claims that plaintiffs were engaged in illegal activities when defendants knew such claims to be false.

29. As a result of defendants' unlawful and constitutionally repugnant misconduct, plaintiffs were wrongfully detained for approximately two (2) days, until their eventual release after their respective criminal court arraignments.

30. Plaintiffs were maliciously prosecuted and denied their rights to fair right trial and due process, from the date of their respective arraignments, until the criminal proceedings were terminated in their favor, via the unconditional and outright dismissal of all adverse charges on August 21, 2017, due to the abject lack of probable cause for their arrests or subsequent criminal prosecutions.

31. The criminal proceedings against plaintiffs were favorably terminated, pursuant to Section 160.50 of the New York Criminal Procedure Law, on August 21, 2017.

32. Defendants, including AVELLINO, BACOVIC and ROLLINS, proceeded to suppress exculpatory evidence from prosecutors, so that plaintiffs would be criminally prosecuted, namely by withholding, failing to disclose or destroying the true accounts of the subject events and occurrences, as well as video recordings, which depicted plaintiffs' engaging in no criminal or unlawful behavior and which contradicted defendants' accounts and allegations.

33. Defendants, including AVELLINO, BACOVIC and ROLLINS, arrested, used excessive force and caused criminal prosecutions to be initiated against plaintiffs, in retaliation for plaintiffs' exertion of their civil rights to peaceably and lawfully gather.

34. Defendants, including AVELLINO, BACOVIC and ROLLINS, arrested, used excessive force and caused criminal prosecutions to be initiated against plaintiffs, because of their desires to

use plaintiffs' arrests and criminal prosecutions as leverage to obtain information from plaintiffs, to incur additional overtime compensation, benefits and career favor from the superior officers, to avoid adverse consequences associated with failing to meet NYPD departmental arrest quotas and also to conceal their egregious violations of proper police procedures and gross misconduct, including their fabrications of non-existent observations, evidence and information.

35. Defendants, including AVELLINO, BACOVIC and ROLLINS, illegally targeted plaintiffs for law enforcement action, due to defendants' impermissible considerations of plaintiffs' race, ethnicity, or impermissible perceptions thereof, as plaintiffs would not have been stopped, searched, subjected to the use of excessive force, arrested or maliciously prosecuted, otherwise.

36. Defendants, including AVELLINO, BACOVIC and ROLLINS, engaged in a conspiracy to falsely arrest and maliciously prosecute plaintiffs by personally conferring with each other, regarding the fabrication of the aforementioned non-existent evidence and observations, as well as the manner and means by which said fabrications would be forwarded to the District Attorney's Office.

37. Plaintiffs assert that the Defendants, including AVELLINO, BACOVIC and ROLLINS, who violated plaintiffs' civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission of such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

38. The individually named defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

39. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via incontrovertible evidence, such as video evidence.

40. The constitutionally repugnant behavior that persists within the ranks of the NYPD results from the NYPD's own policies, rules and procedures, namely the NYPD's incredibly flawed and illegal use of arrest quotas. Despite its illegality, such policies remain system in throughout the NYPD and its individual commands. The NYPD, however, was not content in compelling its officers to effect as many arrests as possible, regardless of the presence of any legal right to do, it promulgated various subsets of quotas, which are predicated on race, color or ethnicity. Additionally, the NYPD, its supervisors or policymakers would assign varying point values to arrests, which were, again, impermissibly based upon the arrestee's race, color or ethnicity. Unsurprisingly, officers would be better rewarded for minority arrests or summonses. This

egregious conduct has reported by numerous respected media outlets and publications and has even formed the basis for federal lawsuits against the City and the NYPD, which were commenced by its own employee officers.

41. On June 17, 2020, the *New York Daily News* published an article, by Graham Rayman, entitled “Brooklyn Cop Claims he was Punished for not Meeting Arrest Quotas, Refusing to Take Responsibility for Controversial Arrest in which he Wasn’t Involved,” describing allegations from an NYPD Police Officer, Terrence Dickerson, that he was retaliated against by the NYPD for refusing to adhere to mandatory racially based arrest quotas and for his refusal to accept responsibility for a controversial and publicized arrest via the excessive force, despite the fact that he was not even at the scene.

42. Another article with a title that speaks for itself, also published by the *New York Daily News*, on December 5, 2019, and written by Graham Rayman, is entitled “Ex-Cop Details NYPD ‘Collar Quotas’—Arrest Black and Hispanic Men, ‘No Cuffs on Soft Targets’ of Jews, Asians, Whites: Court Docs.”

43. *The New York Times*, on December 6, 2019, published an article by Joseph Goldstein and Ashley Southall, entitled “I Got Tired of Hunting Black and Hispanic People,” which revealed a disturbing account from a different NYPD Police Officer, Anthony Diaz, describing a police force that measures the quality of police work by the quantity of minority arrests.

44. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an

alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

45. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars." Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

46. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

47. Other articles include: (i) “Testilying’ by Police: A Stubborn Problem,” by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) “New York Detective Charged with Faking Lineup Results,” by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) “He Excelled as a Detective, Until Prosecutors Stopped Believing Him,” by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) “Review Board Notes Rise in New York Police Officers’ False Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) “The Drugs? They Came from the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.

48. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

49. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in plaintiff’s arrest without probable cause.

50. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

51. Defendants' actions, pursuant to plaintiffs' underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of plaintiffs' civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

52. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of defendants, the NYPD and City of New York.

53. Upon information and belief, the personnel files, records and disciplinary histories of the officer defendants will reveal a history of Constitutional violations indicative of defendant City's knowledge that the individual officer defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named defendants committing similar violations in the future was extremely high.

54. Upon information and belief, said personnel files, records and disciplinary histories will

conclusively show that the City and the NYPD were fully aware of defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Defendants, AVELLINO, BACOVIC and ROLLINS.

55. Upon information and belief, the individually named defendants have combined to be named as defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

56. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct

57. The aforementioned acts of Defendants, including AVELLINO, BACOVIC and ROLLINS, directly or proximately resulted in the deprivation or violation of plaintiffs' civil rights, as guaranteed and protected by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

58. As a direct or proximate result of said acts, plaintiffs were caused to suffer the loss of their liberties, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as

well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION

Free Speech Retaliation Claim Under
New York State Law

59. The above paragraphs are here incorporated by reference as though fully set forth herein.

60. Plaintiffs engaged in speech and activities that were protected by Art. I § 8 of the Constitution of the State of New York.

61. Defendants committed impermissible or unlawful actions against plaintiff that were motivated or substantially caused by plaintiffs' engagement in constitutionally protected speech or activities.

62. Defendants' retaliatory actions against plaintiffs resulted in the deprivation of their liberty and the initiation of criminal charges against them.

63. Defendants' retaliatory actions adversely affected plaintiffs' protected speech or activities by physically or procedurally preventing them from further pursuing said protected speech or activities or by chilling their desires to further participate or engage in such protected speech or activities.

64. Accordingly, plaintiffs' rights to engage in protected speech and activities, guaranteed and protected by Art. I § 8, of the New York State Constitution, were violated by defendants.

65. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

66. As a direct and proximate result of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

First Amendment Retaliation Claim Under
42 U.S.C. § 1983 Against Individual Defendants

67. The above paragraphs are here incorporated by reference as though fully set forth herein.
68. Plaintiffs engaged in speech and activities that were protected by the First Amendment to the United States Constitution.
69. Defendants committed impermissible or unlawful actions against plaintiffs that were motivated or substantially caused by plaintiffs' engagement in constitutionally protected speech or activities.
70. Defendants' retaliatory actions against plaintiffs resulted in the deprivation of their liberty and the initiation of criminal charges against them.
71. Defendants' retaliatory actions adversely affected plaintiffs' protected speech or activities by physically or procedurally preventing them from further pursuing said protected speech or activities, or by chilling their desires to further participate or engage in such protected speech or activities.
72. Accordingly, plaintiffs' rights to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the United States Constitution, were violated by defendants.
73. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged

THIRD CAUSE OF ACTION

Unlawful Search & Seizure Under
New York State Law

74. The above paragraphs are here incorporated by reference as though fully set forth herein.
75. Defendants subjected Plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

76. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their persons and property.

77. Plaintiffs did not consent to the unreasonable searches and seizures to their persons or property.

78. The unreasonable searches and seizures to plaintiffs' persons and property were not otherwise privileged.

79. Accordingly, defendants violated plaintiffs' rights to be free from unreasonable searches and seizures, pursuant to Art. I § 12, of the New York State Constitution and Art. II § 8, of the New York Civil Rights Law.

80. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

81. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Unlawful Search & Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

82. The above paragraphs are here incorporated by reference as though fully set forth herein.

83. Defendants subjected plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

84. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their persons and property.

85. Plaintiffs did not consent to the unreasonable searches and seizures to their persons or property.

86. The unreasonable searches and seizures to plaintiffs' persons and property were not otherwise privileged.

87. Accordingly, defendants violated plaintiffs' rights to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.

88. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

False Arrest & False Imprisonment Under
New York State Law

89. The above paragraphs are here incorporated by reference as though fully set forth herein.

90. Defendants subjected Plaintiffs to false arrest, false imprisonment, and deprivation of liberty without a valid warrant or probable cause.

91. Plaintiffs were conscious of their confinement.

92. Plaintiffs did not consent to their confinement.

93. Plaintiffs' arrests and false imprisonments were not otherwise privileged.

94. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

95. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

False Arrest & False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

96. The above paragraphs are here incorporated by reference as though fully set forth herein.

97. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.

98. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiffs was carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.

99. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiffs.

100. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Assault & Battery Under
New York State Law

101. The above paragraphs are here incorporated by reference as though fully set forth herein.

102. At all relevant times, Defendants caused Plaintiffs to fear for their physical well-being and safety and placed them in apprehension of immediate harmful and/or offensive touching.

103. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered them without their consent or justification.

104. Due to the intentional, willful and unlawful acts of Defendants, Plaintiffs suffered damages.

105. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

106. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

107. The above paragraphs are here incorporated by reference as though fully set forth herein.

108. The Defendants violated Plaintiffs' rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiffs' consent.

109. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered him without his consent.

110. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

111. The above paragraphs are here incorporated by reference as though fully set forth herein.

112. Defendants initiated the prosecutions against Plaintiffs.

113. Defendants lacked probable cause to believe Plaintiffs was guilty or that the prosecutions could succeed.

114. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

115. The prosecutions were terminated in Plaintiffs' favors, when all criminal charges were unconditionally dismissed and sealed.

116. Due to the intentional, willful and unlawful acts of Defendants, Plaintiffs suffered significant damages.

117. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

118. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

119. The above paragraphs are here incorporated by reference as though fully set forth herein.

120. Defendants initiated the prosecutions against Plaintiffs.

121. Defendants lacked probable cause to believe Plaintiffs were guilty or that the prosecutions would succeed.

122. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

123. The prosecutions were terminated in Plaintiffs' favors, when all criminal charges were unconditionally dismissed and sealed.

124. Accordingly, Defendants violated Plaintiffs' Fourth and Fourteenth Amendment rights.

125. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

126. The above paragraphs are here incorporated by reference as though fully set forth herein.

127. Defendants arrested, detained and caused the criminal prosecutions to be initiated or maintained against Plaintiffs to compel the compliance or forbearance of some act.

128. Defendants had no excuse or justification to forcibly detain or initiate prosecutions against Plaintiffs, especially with the absence of any cognizable probable cause.

129. Defendants intended to inflict substantial harm upon Plaintiffs.

130. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecutions.

131. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

132. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

133. The above paragraphs are here incorporated by reference as though fully set forth herein.

134. Defendants arrested, detained and caused criminal prosecutions to be initiated or maintained against Plaintiffs to compel the compliance or forbearance of some act.

135. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.

136. Defendants intended to inflict substantial harm upon Plaintiffs.

137. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecutions.

138. Defendants' actions deprived Plaintiffs of their constitutional rights to free from illegal searches and seizures and to not be deprived of their liberty without the due process of law in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

139. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Denial of Right to Due Process Under New York State Law

140. The above paragraphs are here incorporated by reference as though fully set forth herein.

141. Defendants fabricated false evidence to be used against Plaintiffs that was likely to influence a jury's decision.

142. Defendants forwarded said false information to prosecutors within the District Attorney's Office.

143. Defendants' actions resulted in post-arraignment restrictions and deprivations upon plaintiffs' liberty and freedom of movement.

144. Accordingly, defendants deprived plaintiffs of their civil rights, pursuant to Article I §§ 1, 2, 6 & 9, of the New York State Constitution, as well Article II §§ 10 & 12, of the New York Civil Rights Law.

145. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

146. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

147. The above paragraphs are here incorporated by reference as though fully set forth herein.

148. Defendants fabricated false evidence to be used against Plaintiffs that was likely to influence a jury's decision.

149. Defendants forwarded said false information to prosecutors within the District Attorney's Office.

150. Defendants' actions resulted in post-arraignment restrictions and deprivations upon plaintiffs' liberty and freedom of movement.

151. Accordingly, defendants violated Plaintiffs' rights to fair trial, pursuant to the Fifth and Fourteenth Amendments to United States Constitution.

152. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Biased Based Profiling under
New York City Law

153. The above paragraphs are here incorporated by reference as though fully set forth herein.

154. Defendants impermissibly relied upon Plaintiffs' actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation, as the determinative factor in initiating law enforcement action against Plaintiffs, rather than Plaintiffs' behavior or other information or circumstances that would link Plaintiffs to suspected unlawful activity.

155. Accordingly, defendants violated plaintiffs' rights, pursuant to § 14-151 of Administrative

Code of the City of New York.

156. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

157. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws under
New York State law

158. The above paragraphs are here incorporated by reference as though fully set forth herein.

159. Plaintiffs, as African-American males or a Hispanic or Latina female, belong to protected Classes and racial/ethnic minorities.

160. Defendants discriminated against Plaintiffs on the basis of their race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.

161. Defendants also engaged in the selective treatment of Plaintiffs, in comparison to others similarly situated.

162. Defendants' discriminatory treatment of Plaintiffs was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of their Constitutional rights, or a malicious or bad faith intent to injure Plaintiffs.

163. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

164. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiffs.

165. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.

166. Accordingly, defendants violated plaintiffs' rights, pursuant to Article I § 11, of the New York

State Constitution, Article VII § 79-N, of the New York Civil Rights Law and New York Executive Law § 296(13), also known as the New York Human Rights Law.

167. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

168. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 & 1983 Against Individual Defendants

169. The above paragraphs are here incorporated by reference as though fully set forth herein.

170. Plaintiffs, as African-American males or a Hispanic or Latina female, belong to protected Classes and racial/ethnic minorities.

171. Defendants discriminated against Plaintiffs on the basis of their race, color or ethnicity

172. Defendants engaged in the selective treatment of Plaintiffs in comparison to others similarly situated.

173. Defendants' selective treatment of Plaintiffs was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of his Constitutional rights, or malicious or bad faith intent to injure Plaintiffs.

174. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

175. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiffs.

176. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.

177. Accordingly, defendants violated Plaintiffs' rights, under the Fourteenth Amendment.

178. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights & Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1983, 1985 & 1986 Against Individual Defendants

179. The above paragraphs are here incorporated by reference as though fully set forth herein.

180. Defendants engaged in a conspiracy against Plaintiffs to deprive Plaintiffs of their rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of their liberties or property without due process of law, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.

181. Defendants committed overt acts in furtherance of their conspiracy against Plaintiffs.

182. As a result, Plaintiffs sustained injuries to their person, was deprived of their liberties or was deprived of rights or privileges of citizens of the United States.

183. Defendants' conspiracy was motivated by a desire to deprive Plaintiffs of their civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.

184. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiffs' civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

185. Accordingly, defendants violated Plaintiffs' rights, pursuant to the Fourth, Fifth, Sixth and/or Fourteenth Amendments to the United States Constitution.

186. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

187. The above paragraphs are here incorporated by reference as though fully set forth herein.

188. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

189. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

190. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTIETH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

191. The above paragraphs are here incorporated by reference as though fully set forth herein.

192. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

193. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

194. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-FIRST CAUSE OF ACTION

Negligent Hiring, Training, Retention & Supervision Under
New York State Law

195. The above paragraphs are here incorporated by reference as though fully set forth.

196. Defendant City owed a duty of care to Plaintiffs to adequately hire, train, retain and supervise its employee defendants.

197. Defendant City breached those duties of care.

198. Defendant City placed defendants in a position where they could inflict foreseeable harm.

199. Defendant City knew or should have known of its employees' propensity for committing civil rights violations.

200. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiffs.

201. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-SECOND CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

202. The above paragraphs are here incorporated by reference as though fully set forth.

203. Defendant City maintained a policy or custom that caused Plaintiffs to be deprived of their civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiffs, to such violative behavior.

204. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

205. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with defendant City's employees.

206. Defendant City's employees engaged in such egregious and flagrant violations of plaintiffs' Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City's employees.

207. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

208. Defendant City's conduct caused plaintiffs to be deprived of their civil rights, as guaranteed by the Constitution of the United States, via the First, Fourth, Fifth and Fourteenth Amendments thereto.

209. As a direct and proximate result of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiffs respectfully request judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) On the Twentieth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- u) On the Twenty-First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- v) On the Twenty-Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- w) Awarding Plaintiffs punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- x) Awarding Plaintiffs reasonable attorneys' fees and costs, pursuant to 42 U.S.C. § 1988 and all applicable state or local laws;
- y) Together with the costs and disbursements of this action.

JURY DEMAND

Plaintiffs demand a trial by jury.

Dated: Bayside, New York
January 6, 2021

SIM & DEPAOLA, LLP

/s/ Samuel C. DePaola
By: Samuel C. DePaola, Esq.
Attorneys for Plaintiffs
42-40 Bell Blvd – Ste 201
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ATTORNEY VERIFICATION

I, Samuel C. DePaola, an attorney admitted to practice in the courts of New York State, state that I am a partner with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters, I believe them to be true. The reason this verification is made by me and not by Plaintiffs, is because Plaintiffs reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: January 6, 2021

/s/ Samuel C. DePaola
Samuel C. DePaola, Esq.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

TROY GRANT and ANTHONY PAGAN,

Plaintiffs,

-against-

CITY OF NEW YORK, JOHN AVELLINO, EDIN BACOVIC, ANDY ROLLINS and JOHN or
JANE DOE 1-10,

Defendants.

SUMMONS & VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

By: Samuel C. DePaola, Esq.
Attorneys for Plaintiffs
42-40 Bell Boulevard
Suite 201
Bayside, New York 11361
Tel. (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for